

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
AUGUST 05, 2026
8:30 a.m.

4. ERNESTO MAZAR KINDELAN V. KARI GILSON

24FL0826

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on April 24, 2026, to modify child custody and visitation, and make other parenting-related orders. The filing of the RFO prompted the court to refer the parties to a CCRC session set for May 11, 2026. A hearing on the RFO was originally set for June 24, 2026.

Proof of service filed May 04, 2026, shows the RFO and supporting documents were electronically served upon Respondent on May 01, 2026.

On May 07, 2026, Respondent filed a request to reschedule the CCRC appointment and hearing date. The court granted Respondent's request. CCRC was re-set for June 22, 2026; and the hearing was continued to August 05, 2026.

On June 17, 2026, Petitioner filed "Supplemental Declaration No. 2 of [Petitioner] and Additional Evidence in Support of Request for Order filed April 24, 2026." Proof of service filed June 18, 2026, shows this declaration was electronically served upon Petitioner on June 17, 2026.

The court is in receipt of a CCRC report dated July 22, 2026, a copy of which was mailed to both parties that same day per the Clerk's Certificate of Mailing, also filed July 22, 2026.

On July 23, 2026, Respondent filed a Responsive Declaration (Judicial Council form FL-320) and a separate Declaration (Judicial Council form MC-030). Proof of service submitted July 23, 2026, shows both of these filings were electronically served upon Petitioner that same day.

On July 29, 2026, Petitioner filed a Declaration (Judicial Council form MC-030) concerning the CCRC report. Proof of service, also filed July 29, 2026, shows the declaration was electronically served upon Respondent that same day.

On July 30, 2026, Respondent filed an Opposition to Remote Proceeding at Evidentiary Hearing or Trial (Judicial Council form RA-015), a copy of which was electronically served upon Petitioner that same day per the proof of service, also filed July 30, 2026.

The CCRC report includes agreements of the parties on some issues and recommendations from the CCRC counselor on all remaining issues. The court finds the agreements and recommendations of the CCRC counselor to be in the best interests of the parties' children and so adopts them as the orders of the court.

TENTATIVE RULING #4: THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE CCRC REPORT DATED JULY 22, 2026, TO BE IN THE BEST INTERESTS OF THE PARTIES' CHILDREN AND SO ADOPTS THEM AS THE ORDERS OF THE COURT.

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NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.